

e: Marketplace Misrepresentation and Potential Class Action Liability

2 messages

Chase Kinslow <chase.kinslow@gmail.com>

Thu, Dec 18, 2025 at 4:53 PM

To: Patricia Loureiro <patricia.loureiro@farfetch.com>, parker@coupang.com, svetlana.bell@farfetch.com, wong@coupang.com, epstein@coupang.com, stephen.eggleston@farfetch.com, luis.carvalho@farfetch.com, jose.bago@farfetch.com, stephanie_phair@yahoo.com, alicekang@yahoo.com, akryder@gmail.com, tkdkerry@gmail.com, stephanie@invisibledynamics.com
Cc: stephanie_phair@yahoo.com, og.nnamani@gmail.com

I am writing to formally document ongoing consumer protection violations by Farfetch and to provide notice of potential class action liability arising from systematic misrepresentation of your marketplace business model.

Background

On November 30, I purchased some shoes from what I believed to be Farfetch directly, relying on representations made throughout your website, checkout process, and marketing materials. At no point during the transaction was I clearly informed that I was purchasing from a third-party marketplace seller rather than from Farfetch itself. Your website prominently features Farfetch branding, payment processing, and customer service contact information in a manner that creates the reasonable impression of direct sale.

Only after delivery issues arose did I discover that Farfetch disclaimed responsibility, asserting that the transaction was with a "marketplace partner." This disclosure failure violates fundamental consumer protection principles and multiple state and federal consumer protection statutes.

Regulatory Complaints Filed

I have already drafted formal complaints with:

Federal Trade Commission (FTC) regarding deceptive trade practices under 15 U.S.C. § 45 ✓

Louisiana Attorney General's Consumer Protection Section regarding violations of the Louisiana Unfair Trade Practices and Consumer Protection Law (La. R.S. 51:1401 ✓

These complaints document **specific misrepresentations, timeline of events, and the systematic nature of Farfetch's disclosure failures.**

Class Action Viability

I am not the only consumer affected by these practices. A basic review of consumer complaints across Better Business Bureau, Trustpilot, and Reddit reveals a consistent pattern: customers purchasing from Farfetch with no clear disclosure of marketplace seller identity until problems arise, at which point Farfetch disclaims liability despite taking payment, providing customer service contact, and maintaining complete control over the user experience.

This pattern unequivocally indicates:

Common questions of law and fact across thousands of transactions

Typicality of claims (identical business model, identical misrepresentation)

Adequacy of representation (well-documented individual harm)

Numerosity (nationwide consumer base over multiple years)

The elements for class certification under Rule 23 appear readily satisfied. The damages, while individually modest, become substantial in the aggregate when applied across Farfetch's entire U.S. marketplace transaction history.

Demand for Record Preservation

This correspondence serves as formal notice to preserve all documents, communications, and data related to:

Marketplace seller disclosure policies and implementation (2020-present)

Website design decisions regarding seller identification

Checkout process development and testing

Customer service protocols for marketplace transactions

Internal communications regarding disclosure adequacy

Marketing materials and brand guidelines

Payment processing and transaction records

Failure to preserve these materials may result in spoliation sanctions in subsequent litigation.

Resolution Opportunity

I am providing Farfetch an opportunity to address this matter before I retain class action counsel. Specifically, I expect:

Full refund of my purchase price plus shipping costs

Written acknowledgment of the disclosure deficiencies

Concrete policy changes to ensure clear, conspicuous marketplace seller disclosure at point of sale

Compensation for time spent pursuing regulatory complaints and resolution

I will allow two (2) days from the date of this correspondence for substantive response. Absent good-faith engagement, I will proceed with exploring class action litigation with plaintiff's firms specializing in consumer protection and e-commerce fraud.

Charles W. Kinslow, C.P.A., J.D.

1002 Park Avenue

Monroe, LA 71201

(501) 707-7779

chase.kinslow@gmail.com

I expect prompt response from Farfetch's legal department, or someone with a title beyond a generic customer associate whose sole intent is to deflect and delay.

--

Charles W. Kinslow IV, J.D., C.P.A. <https://www.linkedin.com/in/experiencedaccountantlawyer>

Chase Kinslow <chase.kinslow@gmail.com>

To: elliott.jordan@northerndata.de, jose@joseneves.org, fsulichin@gmail.com, ivy.fu@harrods.com, jv@carwow.co.uk

Thu, Dec 18, 2025 at 5:41 PM

[Quoted text hidden]